Cons. K

No 44

Same ack as P. desp on this subject
Ack 12 oct

Millwood

AUG 31 1874 UNITED STATES CONSULATE

DEPARTMENT OF STATE RECEIVED OCT 12 1874

United States Consulate
Amoy August 15th 1874

Mr. Henderson to Department of State

Subject
Arrest of C. W. le Gendre

Contents
Correspondence in relation to same.

No. 44. United States Consulate
Amoy August 15. 1874

Hon. John Cadwalader
Assistant Secretary of State
Washington D.C.

Sir:

I have the honor to enclose herewith a copy of my despatches Nos 11 & 12 to the U. S. Legation at Peking with enclosures.

I am, sir,
Your obedient servant
J J Henderson
U. S. Consul

1 Inclosures- 1. My No 11 to Mr. Williams.
2 " 2. Dispatch from acting Japanese Consul Amoy
3. 3. My reply to same.
4. 4. My No. 12 to Mr. Williams.
5. 5. Translation of despatch from Chinese Board of Trade Foochow.

Enclosure no #1.

No 11. United States Consulate
Amoy August 13th 1874

Hon S. Wells Williams
U.S. Chargé d'Affaires
Peking.

Sir,

I have the honor to enclose copies of correspondence which recently passed between me and the acting Japanese Consul at this port.

I would be glad to have for future guidance your opinion of the questions involved. In great haste

I am Sir
Your obdt Servt

U.S. Consul

Enclosure no #1.

No 11.

United States Consulate
Amoy August 13th 1874

Hon S. Wells Williams
U.S. Chargé d'Affaires
Peking.

Sir,

I have the honor to enclose copies of correspondence which recently passed between me and the acting Japanese Consul at this port.

I would be glad to have for future guidance your opinion of the questions involved. In great haste

I am Sir
Your obdt Servt

U.S. Consul

Enclosure
No. 2.

H. I. J. M. Consulate
Amoy. August 11th 1874

Sir,

I have been informed that the Hon: Chas. W. Le Gendre, a citizen of the United States, who was engaged by the Japanese Government, through the United States Minister in Japan, in December, 1872, in conformity with the terms of Article X of the Treaty of 1858 between Japan and the United States, and now H. I. J. M. Special Commissioner in China, was, on the 6th day of August, 1874, forcibly taken before your court by U. S. Marines landed for that purpose from the U. S. Ship "Yantic", upon unknown charges, and in virtue of a warrant issued by you, while he was in Amoy on his way to Foochow and Shanghai on business connected with his mission; that, on the day following, the

Hon

Hon: Chas. A. Le Gendre was against his will, again brought before your court; that he is now forcibly detained by you at this port, and rendered unable to discharge the duties entrusted to him by His Imperial Japanese Majesty; that he has already notified you that he yielded only to force which he was unable to resist, in suffering the violence and detention to which he is now being subjected in Amoy, and that he has strongly protested against these proceedings:

Now, therefore, I, Te Shek: His Imperial Japanese Majesty's Acting Consul at Amoy, find it my duty to myself protest, which I hereby do, in the most formal and solemn manner against this act of violence towards H. I. J. M. Special Commissioner as being a manifest infraction of the rights of Nations, and contrary to the

o the privileges and immunities
hich public commissioners enjoy
n civilized countries.

I have the honor to be,
Sir
Your obedient, humble servant
(Signed) Goshiki
H.I.J.M. Acting Consul

J. J. Henderson Esq.
United States Consul.
Amoy.

No. 3

No 30.

United States Consulate
Amoy, August 10th 1874

To. She Ki Esquire.
Amoy.

Sir:

I have to acknowledge the receipt of your communication of yesterday in which you complain of my action in arresting Mr C. W. Le Gendre a citizen of the United States who you say is sent to China as a Special Commissioner of H. I. M. the Emperor of Japan

Although I have received no official notice of the Establishment or recognition of a Japanese Consulate at this port, I will state for your information that on the 6th instant Mr Le Gendre was arrested by me in the United States Consulate upon a charge of advising, aiding and abetting an expedition in

hostility

to the Government of China in violation of the laws of the United States, in their treaty with China, and was at the time informed by me that I was acting under instructions from the United States Legation at Peking.

I will add that I know of no provision in the Treaty between Japan and the United States permitting citizens of the latter country to accept or exercise any position under the former which is inconsistent with their prior obligation to obey the laws of their own country or, so long as they remain its citizens whereby they may deprive their Government of its jurisdiction over them either in Japan or China.

The tenth article of our treaty to which you refer does not, even for a lawful purpose, authorize the employment by the

Government of Japan of citizens of the United States to engage in her diplomatic service, and even if it did under the treaty they would still be amenable to the laws of the United States

However I will forward your dispatch to the legation for decision and instructions

I am Sir,
Your Obedient Servant

U.S. Consul

Enclosure
No 4

No. 12.

United States Consulate
Amoy August 15 1874

Hon S. Wells Williams
U S Charge d'affaires
Peking
China

Sir:

I have the honor to enclose what appears to me to be a very crude translation of a semi-official dispatch I yesterday received from the chief of the Committee of Trade at Foochow. The "high provincial authorities" are in great glee over Le Gendre's arrest, and seem to think the prime cause of the Formosa unpleasantness "removed."

At one time while Le Gendre was in custody here I had some apprehension the Japanese would give me trouble. The acting consul filed his "protest" and the Captain of a corvette called in person to remonstrate with me for arresting the "special commissioner" of their Government while here on a "mission of peace."

I

treated them courteously but firmly, assuring them that our Government was determined to prevent its citizens from taking any part whatever in the invasion of Formosa since China had objected to it, and I very easily persuaded them had a right to do so.

The latest and only news from Formosa is to the effect that the Japanese have removed their camp to a point of "Captain Parks' Cove" a short distance inland, where nothing but cannon can easily dislodge them by sea.

The Chinese are still collecting troops and repairing the old fortifications that guard the entrance to Amoy.

Messrs Cassel and Wasson are still with the Japanese at Liang Kiow.

I am sir your obedient servant

J. J. Henderson
U. S. Consul

In [illegible] No. 5

Sak Sing Yuen, chief officer in charge of the Board of Trade of the Fukhien Province, residing at Foochow &c.
to J. J. Henderson Esq. U. S. Consul, Amoy.

I beg to inform you now that I have received a Despatch from Sub-prefect Chen in which he reported to me that on the 6th August you arrested Le Gendre; and it is with the greatest pleasure I hear the news.

Legendre is connected with the Japanese Government, and he gives all the plans about those affairs. It is therefore contrary to international Law.

Now it shows the mutual friendship with China that you have done everything just in arresting him, and I thank you for having issued a Proclamation notifying the citizens of the United States connected with the Japanese armies to leave the place, and I also thank you for having sent a Marshall with the Notification to Formosa.

Now that you have arrested Legendre and kept him in your care, it shows

that

that you have done your official
duty and shows mutual good
faith between my country and yours
forever; and I thank your government
as well as yourself in this matter
of your official duty.

Now I have petitioned the High
Authorities and requested them to
write to the Tsung li Yamen and lay the
case before His Imperial Majesty in
order to show that you have honorably
and fearlessly performed your duty,
and also to show all China and other
foreign countries what you have done
and that shows peace and friendship
between our nation and the United
States for ten thousand years.

I shall feel obliged if you
will give me all the particulars
concerning the arrest of Segunda and
to inform me of the results of his trial.

When the case is finally settled
I will at once communicate these
facts to the High authorities and
ask them to forward my request
to His Majesty the Great Emperor

to give

to give you a large remuneration
for the utmost care you have taken
With best regards &c. &c.

Dated Bangkok 16th day 6th moon [illegible] year
10th August 1874